

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

12. S-CV-0052568 GOLDEN STATE HOMES v. JOHNSTON, RUSSELL

Defendant Bonnie M. Turri's Motion to Expunge Plaintiff Golden State Homes, LLC's Notice of Pendency of Action (*Lis Pendens*)

Preliminary Matters

Defendant's requests for judicial notice are granted. Defendant's objections are overruled in their entirety.

Ruling on Motion

Defendant moves to expunge the lis pendens on the grounds that plaintiff cannot establish the probable validity of its real property claims and did not comply with lis pendens service requirements.

A party may "[a]t any time after notice of pendency of action has been recorded . . . apply to the court in which the action is pending to expunge the notice." (Code Civ. Proc., § 405.30.) "[T]he court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim." (*Id.* at § 405.31.) "'Real property claim' means the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property or (b) the use of an easement identified in the pleading, other than an easement obtained pursuant to statute by any regulated public utility." (*Id.* at § 405.4.) "'Probable validity,' with respect to a real property claim, means that it is more likely than not that the claimant will obtain a judgment against the defendant on the claim." (*Id.* at § 405.3.) Plaintiff, as the claimant, has the burden of proof to establish the probable validity of their real property claims. (*Id.* at § 405.30.) The statute "requires a minitrial on the merits for making a probable validity finding." (*De Martini v. Superior Court* (2024) 98 Cal.App.5th 1269, 1280.)

Plaintiff's real property claims are the breach of contract, specific performance, and quiet title causes of action alleged against defendants.

A breach of contract claim has the following essential elements: (1) contract, (2) plaintiff's performance, (3) defendant's breach, (4) damages. (*San Mateo Union High School Dist. v. County of San Mateo* (2013) 213 Cal.App.4th 418, 439.)

Specific performance requires a plaintiff to show "(1) the inadequacy of his legal remedy; (2) an underlying contract that is both reasonable and supported by adequate

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consideration; (3) the existence of a mutuality of remedies; (4) contractual terms which are sufficiently definite to enable the court to know what it is to enforce; and (5) a substantial similarity of the requested performance to that promised in the contract.” (*Real Estate Analytics, LLC v. Vallas* (2008) 160 Cal.App.4th 463, 472.)

A quiet title cause of action requires plaintiff to establish (1) “title of the plaintiff as to which a determination under this chapter is sought and the basis of the title” and (2) “[t]he adverse claims to the title of the plaintiff against which a determination is sought.” (Code Civ. Proc., § 761.020, subs. (b)–(c).)

Plaintiff’s real property claims arise from an alleged breach of plaintiff and defendant Russell Johnston’s Vacant Land Purchase Agreement and Joint Escrow Instructions agreement whereby defendant Russell Johnston unilaterally canceled the agreement and instead sold the property at a higher price to defendant Bonnie Turri.

Here, when considering the allegations—and attachments thereto—in plaintiff’s verified first amended complaint and Nathan Desai’s declaration filed in support of plaintiff’s opposition papers, plaintiff meets its burden to show the probable validity of its real property claims. Defendant Bonnie Turri notably takes issue with plaintiff not paying the purchase price for the property and signing a cancellation of escrow. These arguments are unpersuasive. First, plaintiff submits evidence it was ready, able, and willing to perform—and did perform—its obligation and that defendant Russell Johnston refused to complete the sale. Second, nowhere in the parties’ Vacant Land Purchase Agreement and Joint Escrow Instructions is a provision that automatically terminates the agreement if escrow is cancelled. On the other hand, paragraph 17, subparagraph (G) outlines the parameters for when the parties may cancel the agreement when escrow fails to close. Plaintiff presents evidence that none of the options therein were exercised.

Defendant Bonnie Turri next contends the notice of lis pendens is void and invalid because it was never mailed to her. Code of Civil Procedure section 405.22 requires the claimant “prior to recordation of the notice, cause a copy of the notice to be mailed, by registered or certified mail, return receipt requested, to all known addresses of the parties to whom the real property claim is adverse and to all owners of record of the real property affected by the real property claim as shown by the latest county assessment roll. . . . Service shall also be made immediately and in the same manner upon each adverse party later joined in the action.” However, “[a]ny notice of pendency of action shall be void and invalid as to any adverse party or owner of record unless the requirements of Section 405.22 are met for that party or

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owner and a proof of service in the form and content specified in Section 1013a has been recorded with the notice of pendency of action.” (Code Civ. Proc., § 405.23.)

Here, defendant Bonnie Turri was added to the case on May 6, 2024, which is subsequent to the filing of the complaint on April 3, 2024, and recording the notice of lis pendens on April 10, 2024. The proof of service of the notice of lis pendens does not list defendant Bonnie Turri as a recipient of the notice of lis pendens. Nor does a review of the court record reflect any proof of service filed establishing defendant Bonnie Turri was served with the notice of lis pendens.

Plaintiff contends that because defendant Bonnie Turri purchased the property after the notice of lis pendens was recorded, she had constructive notice of the lis pendens and service was not required to be effectuated on her. (Code Civ. Proc., § 405.24.) However, plaintiff does not present any legal authority for the proposition that service of the lis pendens on her was not required nor can the court discern any.

Accordingly, the motion is granted. The notice of pendency of action (lis pendens) recorded on April 10, 2024, in the Official Records of Placer County, California, for APN/Parcel ID 023-303-029-000 at the address commonly known as 228 Doolittle Drive, Roseville, California 95747 is hereby expunged as void and invalid as to defendant Bonnie Turri.

Defendant Bonnie Turri’s request for attorney’s fees and costs is denied as plaintiff acted with substantial justification in opposing the motion.

Defendant Bonnie M. Turri’s Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Preliminary Matters

Defendant’s requests for judicial notice are granted. Defendant’s objections are overruled in their entirety.

Ruling on Motion

Defendant moves for summary judgment or, in the alternative, summary adjudication as to plaintiff’s first amended complaint (“FAC”). A motion for summary judgment may be granted if “all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc. § 437c, subd. (c).) This is compared to summary adjudication that

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requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds “in all procedural respects as a motion for summary judgment.” (*Id.* at § 437c, subd. (f)(2).) In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the “plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense.” (*Ibid.*)

Plaintiff’s first amended complaint alleges a lone cause of action for quiet title against defendant. A quiet title cause of action requires plaintiff to establish (1) “title of the plaintiff as to which a determination under this chapter is sought and the basis of the title” and (2) “[t]he adverse claims to the title of the plaintiff against which a determination is sought.” (Code Civ. Proc., § 761.020, subds. (b)–(c).) Moreover, “a lis pendens must be filed in a quiet title action.” (*Carr v. Rosien* (2015) 238 Cal.App.4th 845, 851; Code Civ. Proc., § 761.010, subd. (b).)

Here, defendant meets her initial burden to show the quiet title cannot be established because the court expunged the notice of lis pendens as it was void and invalid to her. (UMF No. 11.) The burden therefore shifts to plaintiff to raise a triable issue of material fact.

Plaintiff does not thereafter meet its burden to raise a triable issue of material fact. Accordingly, the motion for summary adjudication is granted as to the quiet title cause of action. Therefore, because the motion for summary adjudication is granted as to the only cause of action alleged against defendant, defendant’s motion for summary judgment is granted.

13. S-CV-0053126 HUSSAIN, SYED v. RAMIREZ, ISIDRO

The order to show cause re: examination is dropped from calendar in light of the parties’ joint declaration filed with the court on June 18, 2026, that includes all information required by the court.

14. S-CV-0053210 GOODALL, BERNADETTE v. ANDRIYENKO, ANATOLIY